

BREYER, J., dissenting

virtually impossible to say that here there is an “elaborate, comprehensive” alternative remedial scheme similar to schemes that, in the past, we have found block the application of *Bivens* to new contexts. *Bush*, 462 U. S., at 385. If these allegations are proved, then in this suit, it is “damages or nothing.” *Bivens*, 403 U. S., at 410 (Harlan, J., concurring in judgment).

There being no “alternative, existing process” that provides a “convincing reason” for not applying *Bivens*, we must proceed to step three. *Wilkie, supra*, at 550. Doing so, I can find no “‘special factors [that] counse[l] hesitation before authorizing’” this *Bivens* action. 551 U. S., at 550. I turn to this matter next.

## II

## A

The Court describes two general considerations that it believes argue against an “extension” of *Bivens*. First, the majority opinion points out that the Court is now far less likely than at the time it decided *Bivens* to imply a cause of action for damages from a statute that does not explicitly provide for a damages claim. See *ante*, at 132–133. Second, it finds the “silence” of Congress “notable” in that Congress, though likely aware of the “high-level policies” involved in this suit, did not “choose to extend to any person the kind of remedies” that the plaintiffs here “seek.” *Ante*, at 144 (internal quotation marks omitted). I doubt the strength of these two general considerations.

The first consideration, in my view, is not relevant. I concede that the majority and concurring opinions in *Bivens* looked in part for support to the fact that the Court had implied damages remedies from *statutes* silent on the subject. See 403 U. S., at 397; *id.*, at 402–403 (Harlan, J., concurring in judgment). But that was not the main argument favoring the Court’s conclusion. Rather, the Court drew far stronger support from the need for such a remedy when